Chapter 16

The Prisoners Speak Out:
Tihar Jail Finds Its Voice

TIHAR HAS A CAPACITY TO HOUSE ONLY 2500 INMATES, AND YET THERE are over 9500 of them herded into that space. 'This has happened,' disclosed one superintendent, 'mainly because of two reasons. One is the Narcotic Drugs and Psychotropic Substances (NDPS) Act. The offence is non-bailable and a very large number of arrests are made under the Act. The other is the Dowry Act. This, again, is a non-bailable offence and, under the Act, whole families, at times even children, are arrested and imprisoned here.'

The NDPS Act of 1985 and its amendment of 1988 appear to be in direct contravention of all human rights' directives. A survey of the more than 1200 prisoners awaiting trial under this Act (and many have been 'waiting' here for more than five years) revealed that almost 90 per cent of them had been arrested for possession of extremely small quantities of drugs or for being very small-time drug peddlers. The arrest and imprisonment of these small-timers did not make any impact on the larger flow of drugs because these people were clearly replaceable; at least this was the impression. A startling fact was that no cases of criminal conspiracy, with either national or international ramifications, came to notice.

Again, irrespective of the quantity found in one's possession, the case can only be tried at the level of the sessions court and not at the subdivisional court level. The sessions courts, already choked with pending trials, were thus further burdened by NDPS cases, wherein the majority of arrests were for possession of two to ten grams of illegal substances.

Let us discuss some individual cases.

Sukha, aged 55, had been awaiting trial for an NDPS offence for four-and-a-half years. His version of events was as follows:

> I used to polish shoes on the streets of Connaught Place [in New Delhi] for a living. Big 'saabs' would get their shoes polished by me. I worked the whole day and would take about two rupees worth of charas in the evening. In my locality there are so many who drink liquor every day and beat their wives and children. No harm comes to them. They are not bad for society. But I am. What justice is there for people like me? Where are those people who sell kilograms and quintals of the stuff? All are enjoying themselves.

Raj Kumar (name changed) had been an undertrial for six-and-a-half years, charged under the NDPS Act. A very steely composure hid the smouldering rage within him. He narrated his story:

> I was running a business in Delhi for some years. I was friendly with a girl whose sister, I discovered subsequently, was involved with some group which was dealing in smuggling drugs